

H.1 3.1.9-1 ELECTRONIC COMMERCE AND SIGNATURE (JULY 2020)

(a) The Electronic Signatures in Global and National Commerce Act (E-SIGN) establishes a legal equivalence between:

(1) Contracts written on paper and contracts in electronic form;

(2) Pen-and-ink signatures and electronic signatures; and

(3) Other legally-required written records and the same information in electronic form.

(b) With the submission of an offer, the offeror acknowledges and accepts the utilization of electronic commerce as part of the requirements of this solicitation and the resultant contract.

(c) Certain documents may need to be provided or maintained in original form, such as large-scale drawings impractical to convert to electronic format or a document with a raised seal signifying authenticity. This clause does not change or affect any other requirements that a document must be in paper format to satisfy legal requirements such as for certain real estate transactions.

(d) The use of electronic signature technology is authorized under this solicitation and the resulting contract.

(e) Contractors must not digitally sign any documents with software that uses the Secure Hash Algorithm 1 (SHA-1). All digitally signed documents and contracts sent to the FAA must use a SHA-256 or higher hash algorithm. This is based on the National Institute of Standards and Technology (NIST) Policy Statement on Hash Functions dated August 5, 2015. Further guidance on the use of SHA-256 is in NIST Special Publication (SP) 800-57 Part 1, section 5.6.2 as amended and SP 800-131A, Revision 1 dated November 6, 2015. Additional guidance on the use of SHA-3 is in NIST SP 800-185 as amended.

(f) Contractors do not have to update documents previously digitally signed using SHA-1 hash algorithms unless the document requires updating. The FAA and contractors may continue to use SHA-1 for the following applications: Verifying old digital signatures and time stamps, generating and verifying hash-based message authentication codes (HMACs), key derivation functions (KDFs), and random bit/number generation.

(End of Clause)

H.2 PERSONAL SERVICES

No personal services shall be performed under this contract. No contract employee will be directly supervised by any employees of the Government. All individual Contractor employee assignments and daily work direction must be given by the applicable Contractor supervisor. If the Contractor believes that any Government action or communication has been given that would create a personal services relationship between the Government and any Contractor employee, the Contractor must promptly notify the Contracting Officer of this communication or action.

The Contractor must not perform any inherently governmental functions under this contract. No Contractor employee may hold him or herself out to be a Government employee, agent, or representative. No Contractor employee must state orally or in writing at any time that he or she is acting on behalf of the Government. In all communication with third parties in connection with the contract, Contractor employees must identify themselves as Contractor employees and specify the name of the company for which they work. In all communications with other Government Contractors in connection with this contract, the Contractor employee must state that they have no authority to in any way change the contract. In such a circumstance, if the other Contractor believes any communications may change the direction of their contract, they should notify the Contracting Officer for that contract and not carry out the direction until a clarification has been issued by the Contracting Officer.

The Contractor must inform all of its employees working on this contract of the substance of this clause. Nothing in this clause will limit the Government's rights to inspect and accept the services to be performed under this contract. The substance of this clause must be included in all subcontracts at any tier.

H.3 REDUCTION OF SERVICES

The Government may decrease, as requirements dictate, the quantity of services called for in the Schedule at the unit price specified. In the event services ordered through a Task Order are no longer required, the Government will provide the Contractor with written notice prior to the reduction of services under this contract. A reduction in services will be executed through a contract modification and/or Task Order modification.

H.4 ACCESS TO GOVERNMENT PROPERTY AND FACILITIES

(a) In performance of this contract, the Contractor may be required to attend meetings or site visits at various FAA buildings including the Federal Aviation Administration Headquarters Building, Washington, D.C. The Contractor will be granted access to the building at all times during normal work hours in performance of the contract.

(b) While Contractor personnel are at any Government site, they are required to comply with all rules and regulations in effect at that site. Contractor personnel must comply with rules and regulations governing employee conduct with respect to health and safety, not only as they relate to themselves but also to other Government employees or agents of the Government. The Contractor must also exercise proper care of all property at the Government site regardless of whether title or such rests with the Government or not.

(c) The Contractor employees requiring access must be processed through the appropriate local security office. Although the Contractor must not be required to handle classified data, security precautions are required for access to Government computer resources. Contractor employees who require computer access will be assigned user accounts, which require user specific passwords for entry.

(d) The property or facilities to which Contractor personnel will have access will remain in the Government's custody and will not be considered as property or facilities furnished to the Contractor.

(e) The Government facilities to which Contractor personnel will have access under this Contract will be made available during the entire contract performance period.

H.5 CONFIDENTIALITY OF DATA AND INFORMATION

In the performance of this contract, the Contractor may have need for access to and use of various types of data and information in the possession of the Government, which the Government obtained under conditions which restrict the Government's right to use and disclose the data and information, or which may be of a nature that its dissemination or use other than in the performance of this contract, would be adverse to the interests of the Government or other parties. Therefore, the Contractor agree to abide by any restrictive use conditions on such data and not to:

(a) Knowingly disclose such data or information to others without written authorization from the CO, unless that data or information has otherwise become available to the public through no action or fault of the Contractor; and

(b) Use for any purpose other than the performance of this contract that data which bears a restrictive marking or legend, unless such information or data has otherwise fallen into the public domain through no action or fault of the Contractor.

In the event the work required to be performed under this contract requires access to proprietary data of other companies, the Contractor must obtain agreement from such other companies for such use unless such data is provided or made available to the Contractor by the Government. Two copies of such company-to-company agreements must be furnished promptly to the CO for the Government's information. These agreements must prescribe the scope of authorized use of disclosure, and other terms and conditions to be agreed upon between the parties thereto. It is agreed by the Contractor that any such data, whether obtained by the Contractor pursuant to the agreement or from the Government must be protected from unauthorized use of disclosure to any individual, corporation, or organization so long as it remains proprietary.

The Contractor agrees to make employees aware of the requirement to maintain confidentiality of data and/or information, and in the necessity to refrain from divulging either the proprietary data of other companies or data that is obtained from the Government to anyone except as authorized. The Contractor must obtain from each employee, engaged in any effort connected with this contract, an agreement, in writing, which must in substance provide that such employee will not, during his/her employment by the Contractor, or thereafter, disclose to others or use for his/her own benefit or the future benefit of any individual, any trade secrets, confidential information or proprietary/restricted data (to include Government "For Official Use Only") received in connection with the work under this contract unless such information otherwise falls in to the public domain through no action or fault of the Contractor or employee. The Contractor must furnish this

agreement to the Government upon request.

The Contractor agrees to hold the Government harmless and to indemnify the Government as to any cost/loss resulting from the unauthorized use or disclosure of third party data or software by the Contractor, its employees, consultants, lecturers, or other agents of any kind.

The Contractor agrees to include the substance of this provision in all subcontracts, if applicable, awarded under this contract. The CO will consider case-by-case exceptions from this requirement for individual subcontracts in the event that (1) the Contractor considers the application of the prohibition of this provision to be inappropriate and unnecessary in the case of particular subcontract; (2) the subcontractor provides a written statement affirming absolute unwillingness to perform absent some relief from the substance of this prohibition; (3) use of an alternate subcontract source would unreasonably detract from the quality of effort; and (4) the Contractor provides the CO timely, written, advance notice of these and any other extenuating circumstances.

Except as the CO specifically authorizes in writing, upon completion of all work under the contract, the Contractor must return all data and information obtained from the Government, including all copies, modifications, adaptations, or combinations thereof, to the CO. Data obtained from other companies must be disposed of in accordance with the Contractor's agreement with that company, or, if the agreement makes no provision for disposition, must be returned to that company. The Contractor must further certify in writing to the CO that all copies, modifications, adaptations, or combinations thereof of data or information, which cannot reasonably be returned to the CO (or to a company) have been deleted from the Contractor's (or subcontractor's) records and destroyed. These restrictions do not limit the Contractor's (or subcontractor's) right to use and disclose any data or information obtained from other sources without restriction.

H.6 SECURITY OF GOVERNMENT INFORMATION SYSTEMS

When using computer, network, and/or communication systems operated by or on behalf of the FAA, the Contractor must comply with the security requirements outlined in OMB Circular A-130 Appendix III, Security of Federal Automated Information Resources, the FAA Security Authorization Handbook, and FAA Security Orders, including FAA Personnel Security Order 1600.1 and FAA Order 1370.121, FAA Information Security and Privacy Program & Policy. Contractor personnel must complete annual Information System Security LOB Awareness Training and any other security training required by the DOT/FAA. Documentation of completed training must be maintained by the contractor in the Contracting Officer Representative.